

		and thus fails as a matter of law. (See Complaint ¶¶ 169-170; <i>Kuroda v. SPJS Holdings, L.L.C.</i>, 971 A.2d 872, 889-90 (Del. Ch. 2009) [dismissing conversion claim based solely on contractual right to money].) The motion as to the sixth cause of action is GRANTED. <u>Seventh Cause of Action for Accounting</u> Defendants contend the accounting cause of action is derivative of the breach of contract cause of action and fails because the breach of contract claim fails. As discussed above, the breach of contract claim remains viable. Therefore, the motion as to the seventh cause of action is DENIED. The Court declines to rule on Plaintiffs' evidentiary objections as not material to the disposition of the motion. (Code Civ. Proc., § 437c(q).) Plaintiffs shall give notice.
2	Melendez v. Highland Lumber Sales, Inc.	The demurrer of defendants Richard Phillips and Daniel LoBue (collectively, Moving Defendants) directed to the second amended complaint (SAC) of plaintiffs Griselda Melendez, individually, and as successor in interest to decedent Federico Galvan; Ivan Galvan; Roberto Galvan, Jr.; and Eduardo Galvan Melendez (collectively, Plaintiffs) is OVERRULED. Moving Defendants are to file an answer to the SAC within 20 days. Moving Defendants contend the SAC fails to allege facts sufficient to support an alter ego theory of liability to support its causes of actions of negligence and premises liability against Moving Defendants. The Court finds the SAC contains sufficient facts to support the allegations of alter ego liability against Moving Defendants. (See SAC ¶¶ 2, 15-16, 26-27.) The foregoing allegations are sufficient at the pleading stage to allege unity of interest and ownership between Moving Defendants and defendant S Olive St, LLC (S Olive) and an inequitable result if the acts are treated as those of S Olive alone. (<i>Sonora Diamond Corp. v. Superior Court</i> (2000) 83 Cal.App.4th 523, 538; <i>Associated Vendors vs. Oakland Meat Co.</i> (1962) 210 Cal.App.2d 825, 838-840.) Moving Defendants argue Plaintiffs failed to allege specific facts to support an alter ego theory, but Plaintiffs were required to allege only "ultimate rather than evidentiary facts." (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 550.) Based on the foregoing, the demurrer is OVERRULED. Counsel for Plaintiff shall give notice.
3	Montoya vs. Central	Defendants Central Oregon Truck Company, LLC ("Central" individually), and Lamarr Horne's (erroneously served as Ray